

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 03/10/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-06679

CASE NAME: DISCOVER BANK VS. GERALD GILCHRIST

*HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY DEF COUNSEL ON 1/6/26

FILED BY: GILCHRIST, GERALD

TENTATIVE RULING:

Background

Counsel for Defendant has filed a motion to be relieved as counsel. The defendant was properly noticed. Counsel cites a breakdown in relationship.

Disposition

The court will require an in camera examination of counsel concerning the breakdown in the relationship between counsel and his client.

Counsel for Defendant is to appear in court, either in person or remotely, on 3/10/26.

2. 9:00 AM CASE NUMBER: L24-02704

CASE NAME: LVNV FUNDING LLC VS. NICOLE MUNOZ

*HEARING ON MOTION IN RE: MOTION TO VACATE DEFAULT JUDGMENT (CONTINUED FROM 1/20/26)

FILED BY: MUNOZ, NICOLE

TENTATIVE RULING:

Background

Defendant filed a Motion, on 12/18/25, to vacate the Default Judgment. The Default Judgment was filed on 9/3/25.

Notice of this Motion was timely filed on Plaintiff.

The Motion is unopposed.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant do not receive actual notice of the process.

Plaintiff filed a proof of service on 5/6/24, reflecting that a process server completed substituted service, on 5/5/24, on a woman at the address that Defendant had apparently used in 2021 (312 N. Wildwood, Hercules), which was reflected on a credit card billing statement attached to the Complaint. The service was done by a registered process server, which raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

However, Defendant, in her Motion, declared that she had not been living at the Hercules address in 2024, and provided a utility bill from 2022 and 2023, reflecting an address in Pleasant Hill.

This court finds that the presumption has been rebutted.

Disposition

Defendant's Motion is Granted.

Defendant to file an Answer to the Complaint within 30 days of this Order.

Defendant to file the Order.

3. 9:00 AM CASE NUMBER: L24-07111

CASE NAME: CITIBANK, N.A. VS. DIANA HENDERSON

*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT

FILED BY: CITIBANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 12/15/25, a motion to enter judgment pursuant to stipulation. The motion was served by mail to Defendant's counsel of record.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement, filed 12/15/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$3,220.78, less any credits for payments received, plus court costs.

Court costs were \$296.02.

Total balance, after credits, is \$3,216.80.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,216.80.

Plaintiff to file order on Motion, as well as submit Judgment.

4. 9:00 AM CASE NUMBER: L24-10336

CASE NAME: DISCOVER BANK VS. LAVON BRITT, JR.

***HEARING ON MOTION IN RE:**

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Background

Plaintiff filed, on 12/12/25, a motion to enter judgment pursuant to stipulation. The motion was served by mail to the address where Plaintiff had personally served the Defendant with a copy of the Complaint in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$4,289.28, plus

court costs, and less any credits for payments received.

Defendant made total payments in the amount of \$900; Court costs are \$296.02. Thus, the judgment amount should be \$3,685.30.

The Stipulation was filed on 12/12/25.

Disposition

Plaintiff's Motion is granted.

Plaintiff to file order on Motion, as well as submit Judgment.

5. 9:00 AM CASE NUMBER: L25-01552
CASE NAME: WELLS FARGO BANK, N.A. VS. BRYAN MANUEL
*HEARING ON MOTION IN RE: SUMMARY JUDGMENT
FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Summary Judgment (the "MSJ"), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via mail service on counsel of record.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of*

Transportation, supra, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first finds that the declaration of Betsy Gibbons, submitted by the Plaintiff, is admissible under the Business Records exception to hearsay. Ms. Gibbons declared that she was familiar with the record keeping practice of Wells Fargo Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence. In addition, statements about the custom and practice of Wells Fargo, such as their practice of mailing Customer Agreements to consumers, as well as the fact that accounts cannot be used unless cards are activated by the cardholder, are admitted.

Next, the court evaluates whether Plaintiff has made a *prima facie* showing of a Breach of Contract.

Plaintiff has provided credit card billing statements and a Cardholder Agreement. There is, in Exhibit A to the declaration of Ms. Gibbons, what purports to be the application submitted by Defendant to Wells Fargo. However, this court finds the Exhibit to be largely illegible, and will disregard it. The court's ruling does not hinge on this exhibit.

The remaining exhibits show a Cardholder Agreement, where the terms, such as making payments for costs incurred, receiving account statements, and the acceptance of the agreement terms by use of the card and account. Ms. Gibbons also declared that it was the custom and policy of Plaintiff to issue such an agreement whenever a party applies for a credit card.

These exhibits, coupled with the declaration of Ms. Gibbons, establish a prima facie showing for Breach of Contract, and that the balance owed to the Plaintiff is \$10,919.94. There is evidence of an implied contract in that an agreement was mailed to Defendant, and he then, with knowledge of the terms, activated and used the card for purchases. The billing statements reflect that Defendant did not repay all of the money that was given to him for the purchases.

The burden would normally shift to the Defendant at this point, but the Motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The MSJ is GRANTED.
2. Plaintiff to prepare the order after hearing.

6. 9:00 AM CASE NUMBER: L25-02009
CASE NAME: DISCOVER BANK VS. LEON NORFORD
***HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT PURSUANT TO STIP FILED BY PLN**
ON 12/12/25
FILED BY: DISCOVER BANK

TENTATIVE RULING:

Background

Plaintiff filed, on 112/12/25, a motion to enter judgment pursuant to stipulation. The motion was served by mail to the address where Plaintiff had personally served the Defendant with a copy of the Complaint in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement, filed 12/12/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$7,278.07, less any credits for payments received, and including any costs.

Defendant made total payments in the amount of \$479, and court costs totaled \$296.02, thus the Judgment amount should be \$7,095.09.

Disposition

Plaintiff's Motion is granted.

Plaintiff to file order on Motion, as well as submit Judgment.

7. 9:00 AM CASE NUMBER: L25-04349
CASE NAME: WELLS FARGO BANK, NA VS. PEDRO GARCIA
*HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS
FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Background

Plaintiff filed, on 12/19/25, a Motion for Judgment on the Pleadings. The motion was timely served on counsel for Defendant. The Motion is unopposed. On 12/4/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All but the final request for admission were deemed to be true by the court.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as the sole cause of action, based on the allegation that Defendant became indebted in the amount of \$12,256.13, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See Order entered 12/4/25 (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$12,256.13.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

8. 9:00 AM CASE NUMBER: L25-05653
CASE NAME: MARCOS RAMOS VENTURA VS. BABUSHKA RUSSIAN DELI & CAFE, INC.
*HEARING ON MOTION IN RE: STRIKE DEFENDANT'S ANSWER
FILED BY:
TENTATIVE RULING:

Background

Plaintiff filed a Motion to Strike Defendant's Answer, and served notice on the Defendant by Mail.

The Motion is unopposed.

Analysis

California Code of Civil Procedure § 435(b)(1) provides that a party may serve and file a notice of motion to strike the whole or any part of a pleading within the time allowed to respond to the pleading. Under California Code of Civil Procedure § 436, the Court may:
(a) Strike out any irrelevant, false, or improper matter inserted in any pleading; or

(b) Strike out all or any part of a pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

A corporation cannot represent itself in court. See *Merco Construction Engineers v. Municipal Court* (1978) 21 Cal.3d 725. This holding bars any officers of the corporation from appearing on behalf of the corporation unless they are licensed attorneys. *Id.*

In the instant matter, the Answer for the Defendant, a corporation, was provided by Zoriy Malkov, who appears to be an officer of the corporation, and is not an attorney. Thus, nothing this declarant provided in the Answer conforms to the law as held in *Merco*.

Plaintiff also attempted to meet and confer with Defendant prior to the filing of the Motion, but the attempt met no response.

Finally, any limits on the time within which a Motion to Strike must be filed are triggered by the service of the Answer on the Plaintiff. In the instant matter, there is no proof of the date on which the Answer was served on Plaintiff.

Disposition

Plaintiff's Motion is Granted.

The Answer, in its entirety, will be stricken.

The Defendant will have 10 days from notice of this Order to file an Amended Answer.

Plaintiff to file Order.

9. 9:00 AM CASE NUMBER: L25-06986

CASE NAME: BANK OF AMERICA N.A. VS. RAFAEL ROMERO-ROMERO

*HEARING ON MOTION IN RE: VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address where the Defendant was personally served

with the Summons and Complaint.

The parties entered into a CCP 664.6 agreement, filed on 8/29/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$2,730, plus costs, less any credits for payments received.

The Defendant made payments of \$1,886.33.

Costs are \$583.61. A memo on costs was filed with the court.

A dismissal was entered on 10/10/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,189.61.

Plaintiff to file order on Motion, as well as submit Judgment.

10. 9:00 AM CASE NUMBER: L25-07038

CASE NAME: BANK OF AMERICA N.A. VS. RAFAEL ROMERO-ROMERO

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED ON 12/22/25**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address where the Defendant was personally served with the Summons and Complaint.

The parties entered into a CCP 664.6 agreement, filed on 9/8/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$9,389.61, plus costs, less any credits for payments received.

The Defendant made payments of \$3,153.

Costs are \$583.61. A memo on costs was filed with the court.

A dismissal was entered on 10/23/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$7,150.61.

Plaintiff to file order on Motion, as well as submit Judgment.

11. 9:00 AM CASE NUMBER: N25-2474

CASE NAME: BETTY VETRO VS. TAMPICO HEALTHCARE CENTER, LLC

***HEARING ON MOTION IN RE: PETITIONERS' OSC FR TAMPICO HEALTHCARECENTER, LLC'S FAILURE TO MAKE MED RECS AVAIL & REQ FOR MONETARY SANCT IN AMT OF \$4,550.00 AGAINST TAMPICO HEALTHCARE, LLC**

FILED BY:

TENTATIVE RULING:

Background

Petitioner filed an Order to Show Cause ("OSC") on 12/3/25 for Respondent's alleged failure to produce medical records, under Section 1158(b) of the Evidence Code.

Petitioner also requested sanctions in the amount of \$4,550, under Section 1158(d).

In the instant matter, it is undisputed that Petitioner provided proper written authorization for records, and that Respondent failed to provide them within the statutory time frame of five days. Thus, the only issue remaining is that of sanctions.

Analysis

Section 1158(b) of the Evidence Code mandates that a medical provider "shall promptly make of all of the patient's records" available for inspection.

Section 1158(d) of the Evidence Code provides that the failure to provide these records within five days may render the provider liable for reasonable expenses, such as attorney fees. Section 1985.7 of the Code of Civil Procedure adds to this, compelling sanctions in the event of such a failure unless the court finds that the provider acted with substantial justification "[O]r that other circumstances make the imposition of the sanction unjust." *Id.*

The Petitioner and Respondent concede that Petitioner made initial requests for records via fax, but that these faxes – for whatever reason – did not transmit properly. Petitioner

then requested records from Respondent on 10/20/25, via email. Per the declaration of Marjorie Elks, Respondent replied two days later, on 10/22/25, via email, indicating that this would be directed to the head of their medical records department. Ms. Elks does not normally handle requests for records.

However, the head of the records department suffered a family loss, was only intermittently present at the provider over the next six to eight weeks or so, and subsequently resigned. On 1/14/26, Ms. Elks then discovered she had inadvertently missed a follow up email from counsel for Petitioner, Mr. Pick, which was sent to her on 11/20/25. In this email, Mr. Pick was explicit that he had not received the records and would have to consider legal action. It is unclear what prompted Ms. Elks to check her email for missed messages on 1/14/26, that is left unsaid. But the court notes that this occurred after Mr. Pick filed his Petition, and only 6 days before counsel for Plaintiff responded to Mr. Pick with the records. This suggests, by a preponderance, that Ms. Elks looked for Mr. Pick's email only at the beckoning of counsel for Respondent.

The pleadings show that Mr. Pick also emailed the records department of the provider two days before that, on 11/18/25. Mr. Pick declared that he made at least five attempts to contact the provider – via the records department, administrator, and Director of Nursing – and either the provider did not allow him to leave a message, or did not respond to his attempts.

Records were ultimately provided to Petitioner on 1/20/26.

Mr. Pick, in his Reply, complains of a pattern of this sort of behavior in the nursing home industry, and ascribes this behavior to an ulterior motive, which is to discourage families from pursuing meritorious lawsuits. He also refers to many phone calls he made to Respondent.

Mr. Pick declared that he spent seven hours preparing for the filing of the Petition, at a rate of \$650 per hour.

This court notes that this is not a case where Respondent simply ignored a legitimate records request, or could offer no excuse for their neglect. There appears to be an extenuating circumstance. The court finds Ms. Elks credible in that she does not normally handle records requests, and that their medical records director was largely absent,

But this court does not find that Respondent acted with substantial justification. Respondent's explanation for their neglect is not acceptable. Ms. Elks, and the provider generally, were on notice that the person solely responsible for handling medical

requests was often absent. As a medical provider, they should be well aware that one of their significant duties, one which they are legally bound to perform, is to respond to medical records requests. Ms. Elks had reason to suspect that the person in charge of this task was not capable of performing this task competently, yet rather than attempting to investigate whether any requests were, indeed, being neglected, she chose to do nothing.

This court finds it very troubling that Ms. Elks inadvertently missed the email from Mr. Pick on 11/20/25, which, in the caption, indicated it was about Records and that it was urgent, especially considering that Ms. Elks was already aware that her medical records director was having problems.

If the medical records director can't perform her job duty, does this then mean that no one at the health care center is responsible for responding to medical records requests?

What's more, Respondent offers no response to Mr. Pick's declaration that he made numerous phone calls to the records department and to the administrator (whom this court assumes is Ms. Elks), and was either prevented from leaving a message, or never received a response.

Yet this court also interprets the statutes as giving courts discretion in the amount of sanction to levy, even after finding a lack of substantial justification, and even if the sanction is less than what the court determines to be the reasonable fees. Section 1158(d) says that a failure to provide records *may* subject the provider to liability for all reasonable expenses. Section 1985.7 of the CCP compels sanctions under the previous statute unless circumstances make the imposition of that sanction unjust.

In this matter, the court finds that \$500 per hour is a reasonable amount for attorney fees in this location and area of practice, and also finds that 7 hours is a reasonable amount of time expended on the Petition in this matter.

However, this court finds that the imposition of the full amount of attorney's fees - \$3,500 – would be unjust. Respondent experienced an extenuating circumstance, and there is no evidence that their neglect is part of a larger pattern. What's more, Respondent provided the requested records prior to the initial hearing.

Thus, the court will assess half the amount, or \$1,750, as a sanction.

Disposition

Petition for Sanctions is granted in the amount of \$1,750.

Petitioner to file Order.

12. 9:00 AM CASE NUMBER: RS24-0953

CASE NAME: BG ASSET MANAGEMENT, INC. VS. LISA DAVIDSON

*HEARING ON MOTION IN RE: FOR LEAVE TO FILE A FIRST AMENDED CROSS-COMPLAINT

FILED BY: DAVIDSON, LISA M.

TENTATIVE RULING:

Background

Cross Complainant Lisa Davidson filed this Motion for Leave to Amend the Cross Complaint on 12/24/25, and timely served Cross Defendant.

In the proposed Amended Cross Complaint, Cross Complainant alleges damages of well over \$100,000.

The Motion is unopposed.

Analysis

A cross-complainant can request leave of the court to file a new cause of action when the new cause of action arises from the same transaction that gave rise to the cause of action alleged in the original complaint. CCP 426.50, CCP 426.10(c). The failure to file the new cause of action in the original complaint must be for reasons such as inadvertence, or other causes. *Id.*

Trial courts must generally grant leave to amend unless the opposing party would be prejudiced by the amendment. See CCP 426.50, and *Duchrow v. Forrest* (2013) 215 CA4th 1359, 1378.

If the statute of limitations has expired before the amended complaint is filed, the amended complaint is time-barred unless it relates back to a timely filed original complaint. *Curtis Engineering Corp. v. Superior Court* (2017) 16 CA5th 542, 548. An amendment alleging a new theory of liability against the defendant relates back to the original complaint as long as the new cause of action is based on the same general set of facts previously alleged. *Id.*

In the instant matter, the factual transaction alleged in the proposed Amended Cross Complaint is virtually identical to that in the original Cross Complaint. All the causes of action, as well as the addition of new Cross Defendants, in both the Original and proposed Amended Complaints, stem from the lease agreement between Cross-

Complainant and Defendants and the period within. More specifically, both complaints rely heavily on: the circumstances of habitability; the Cross Defendants' improper attempts to levy fees and engage in the eviction process; the retaliatory efforts by Cross-Defendants against Cross-Complainant; and the damages sought by Cross-Complainant as a result of the Cross-Defendants' behavior.

It does not appear that a new factual transaction is being alleged.

Moreover, the Amended Cross Complainant alleges more detail to corroborate the causes of action listed in the Original Cross Complaint.

What's more, the Motion to Amend the Cross Complaint was filed approximately 5 months after the Original, it was filed mere weeks after the attorney for Cross Complainant entered the case. Cross Complainant was self-represented prior to that, which is significant, because it suggests Cross Complainant failed to file a more robust Cross Complaint on the first attempt because of her own, understandable, ignorance of the legal process.

Finally, no trial date has been set.

On the whole, it does not appear that Cross Defendants will suffer any prejudice with the Amended Cross Complaint, and that there are no statute of limitations issues because the Amended Cross Complaint relates back to the Original.

Disposition

Cross Complainant's Motion for Leave to file Amended Cross Complaint is granted.

Cross Complainant to file Amended Cross Complaint within 10 calendar days of this Order.

Cross Complainant to file this Order granting Motion.

Parties are ordered to meet and confer prior to the filing of the Amended Cross Complaint to discuss the issue of whether this should be reclassified as an unlimited civil matter.

Parties are on notice that, should the case remain as a limited civil matter, this court will address, on its own, whether to reclassify the matter at the CMC on 5/27/26.